

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 17-07

**PORT ELIZABETH TERMINAL & WAREHOUSE CORP.
COMPLAINANT
v.
THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY
RESPONDENT**

CERTIFICATION OF JUAN M. BARRAGAN

I, Juan M. Barragan, of full age, hereby certify:

1. I am an attorney-at-law and responsible for handling this matter on behalf of Respondent, The Port Authority of New York and New Jersey (the "Port Authority"). I am fully familiar with the circumstances set forth herein based upon my review of the file maintained by my office.

2. Attached hereto as Exhibit A is a true and correct copy of the relevant portions of Lease No.: LPN-297.

3. Attached hereto as Exhibit B is a true and correct copy of the April 19, 2016 Notice of Termination.

4. Attached hereto as Exhibit C is a true and correct copy of the calendar entry from Microsoft Outlook as evidence of the meeting that took place on March 31, 2017 between representatives from the Port Authority's Ports Department and the Law Department to discuss the subject of "LPN-297 PETW litigation vs negotiation."

5. Attached hereto as Exhibit D is a true and correct copy of summons and verified complaint (without exhibits) filed on May 4, 2017 in the Superior Court of New Jersey, Essex

County, Law Division, Special Civil Part, Landlord/Tenant.

6. Attached hereto as Exhibit E is a true and correct copy of the November 13, 2017 affidavit of service of The Port Authority's responses to the deficiencies PETW indicates are present in the Port Authority's responses to PETW's first request for production of documents with enclosures, The Port Authority's responses to the deficiencies PETW indicates are present in the Port Authority's answers to PETW's first set of interrogatories, and the privilege log.

7. Attached hereto as Exhibit F is a true and correct copy of FedEx's proof of service of The Port Authority's responses to the deficiencies PETW indicates are present in the Port Authority's responses to PETW's first request for production of documents with enclosures, The Port Authority's responses to the deficiencies PETW indicates are present in the Port Authority's answers to PETW's first set of interrogatories, and the privilege log.

8. Attached hereto as Exhibit G is a true and correct copy of the November 14, 2017 letter requesting that PETW withdraw its motion to compel discovery.

I certify that the foregoing statements are true. I am aware that if any of the foregoing statements are willfully false, I am subject to punishment.

PORT AUTHORITY LAW DEPARTMENT
Attorneys for The Port Authority of New York
and New Jersey

By: 

Juan M. Barragan

Dated: November 21, 2017

EXHIBIT A

AGREEMENT OF LEASE

Between

**THE PORT AUTHORITY OF NEW YORK
AND NEW JERSEY**

and

PORT ELIZABETH TERMINAL & WAREHOUSE CORP.

Dated: As of November 1, 2009

TABLE OF CONTENTS

Page

SECTION 1.	LETTING.....	1
SECTION 2.	TERM; LEASE COMMENCEMENT DATE.....	3
SECTION 3.	ENCLOSED AREA BASIC RENTAL.....	4
SECTION 4.	ENCLOSED AREA BASIC RENTAL ESCALATION.....	4
SECTION 5.	OPEN AREA BASIC RENTAL.....	7
SECTION 6.	OPEN AREA BASIC RENTAL ESCALATION.....	8
SECTION 7.	ABATEMENT.....	10
SECTION 8.	RIGHTS OF USER.....	11
SECTION 9.	INGRESS AND EGRESS.....	11
SECTION 10.	GOVERNMENTAL AND OTHER REQUIREMENTS.....	12
SECTION 11.	RULES AND REGULATIONS.....	13
SECTION 12.	OPERATIONAL OBLIGATIONS OF THE LESSEE.....	13
SECTION 13.	PROHIBITED ACTS.....	15
SECTION 14.	SIGNS.....	18
SECTION 15.	INDEMNITY AND LIABILITY INSURANCE.....	19
SECTION 16.	MAINTENANCE AND REPAIR.....	21
SECTION 17.	CASUALTY.....	24
SECTION 18.	ASSIGNMENT AND SUBLEASE.....	26
SECTION 19.	CONDEMNATION.....	26
SECTION 20.	CONSTRUCTION BY THE LESSEE.....	28
SECTION 21.	ADDITIONAL RENT AND CHARGES.....	41
SECTION 22.	RIGHTS OF ENTRY RESERVED.....	42
SECTION 23.	LIMITATION OF RIGHTS AND PRIVILEGES GRANTED.....	44
SECTION 24.	TERMINATION.....	44
SECTION 25.	INTENTIONALLY DELETED.....	46
SECTION 26.	RIGHT OF RE-ENTRY.....	46
SECTION 27.	WAIVER OF REDEMPTION.....	47
SECTION 28.	SURVIVAL OF THE OBLIGATIONS OF THE LESSEE.....	47
SECTION 29.	RELETTING BY THE PORT AUTHORITY.....	48
SECTION 29A.	REMEDIES UNDER BANKRUPTCY AND INSOLVENCY CODES....	49
SECTION 30.	REMEDIES TO BE NONEXCLUSIVE.....	50

TABLE OF CONTENTS

Page

SECTION 31.	SURRENDER.....	50
SECTION 32.	ACCEPTANCE OF SURRENDER OF LEASE.....	51
SECTION 33.	NOTICES.....	52
SECTION 34.	GENERAL.....	52
SECTION 35.	PREMISES.....	56
SECTION 36.	FORCE MAJEURE.....	57
SECTION 37.	BROKERAGE.....	58
SECTION 38.	NON-LIABILITY OF INDIVIDUALS.....	58
SECTION 39.	SERVICES.....	58
SECTION 40.	RIGHT OF TERMINATION - OWNERSHIP AND CONTROL.....	59
SECTION 41.	ADDITIONAL TERMINATION RIGHTS.....	61
SECTION 42.	SECURITY.....	62
SECTION 43.	LATE CHARGES.....	63
SECTION 44.	SUSTAINABLE DESIGN.....	64
SECTION 45.	PORT AUTHORITY COSTS FOLLOWING TERMINATION.....	65
SECTION 46.	DOUBLE RENT FOR HOLDOVER.....	65
SECTION 47.	AUDIT FEE.....	65
SECTION 48.	WAIVER OF JURY TRIAL.....	65
SECTION 49.	COUNTERPARTS.....	66
SECTION 50.	ENVIRONMENTAL RESPONSIBILITIES.....	66
SECTION 51.	RECORD KEEPING.....	76
SECTION 52.	ENTIRE AGREEMENT.....	76
SECTION 53.	OFAC REPRESENTATIONS.....	76
SECTION 54.	ESTOPPEL CERTIFICATE.....	77
SECTION 55.	SIDING RIGHTS.....	78

Schedule A
Exhibit A
Exhibit A-1
Exhibit A-2
Exhibit A-3

Exhibit A-4
Exhibit A-5
Exhibit B
Exhibit C

THIS AGREEMENT OF LEASE (this "Agreement"), made as of November 1, 2009, by and between **THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY** (hereinafter called "the Port Authority"), a body corporate and politic created by Compact between the States of New Jersey and New York, with the consent of the Congress of the United States of America, and having an office and place of business at 225 Park Avenue South, New York, New York 10003; and **PORT ELIZABETH TERMINAL & WAREHOUSE CORP.**, a New Jersey corporation (hereinafter called "the Lessee") with an office and place of business at 201A Export Street, Port Newark, New Jersey 07114, whose representative is Patrick J. Wynne, or such authorized person as may be designated by the Lessee to the Port Authority.

WITNESSETH, THAT:

The Port Authority and the Lessee, for and in consideration of the covenants and agreements hereinafter contained, hereby agree as follows:

Section I. Letting

(a) Subject to and in accordance with the terms and conditions of this Agreement, the Port Authority hereby lets to the Lessee and the Lessee hereby hires and takes from the Port Authority, at Port Newark (sometimes hereinafter called "the Facility"), in the City of Newark, in the County of Essex and the State of New Jersey, the following:

(i) The enclosed space shown in cross-hatching and the associated open areas shown in stipple on the sketch attached hereto and made a part hereof marked as "Exhibit A," together with the buildings, structures, fixtures, improvements and other property, if any, of the Port Authority located or to be located or constructed therein or thereon, and buildings, structures, fixtures, improvements and other property of the Port Authority being hereinafter collectively called "the Building 201 Premises"; and

(ii) The enclosed space shown in cross-hatching and the associated open areas shown in stipple on the sketch attached hereto and made a part hereof marked as "Exhibit A-1," together with the buildings, structures, fixtures, improvements and other property, if any, of the Port Authority located or to be located or constructed therein

or thereon, and buildings, structures, fixtures, improvements and other property of the Port Authority being hereinafter collectively called "the Building 202 Premises"; and

(iii) The enclosed space shown in cross-hatching and the associated open areas shown in stipple on the sketch attached hereto and made a part hereof marked as "Exhibit A-2," together with the buildings, structures, fixtures, improvements and other property, if any, of the Port Authority located or to be located or constructed therein or thereon, and buildings, structures, fixtures, improvements and other property of the Port Authority being hereinafter collectively called "the Building 194 Premises"; and

(iv) The enclosed space shown in cross-hatching and the associated open areas shown in stipple on the sketch attached hereto and made a part hereof marked as "Exhibit A-3," together with the buildings, structures, fixtures, improvements and other property, if any, of the Port Authority located or to be located or constructed therein or thereon, and buildings, structures, fixtures, improvements and other property of the Port Authority being hereinafter collectively called "the Building 199 Premises"; and

(v) The enclosed space shown in cross-hatching and the associated open areas shown in stipple on the sketch attached hereto and made a part hereof marked as "Exhibit A-4," together with the buildings, structures, fixtures, improvements and other property, if any, of the Port Authority located or to be located or constructed therein or thereon, and buildings, structures, fixtures, improvements and other property of the Port Authority being hereinafter collectively called "the Building 173 Annex Premises" and, when taken together with the Building 194 Premises, the Building 199 Premises, the Building 201 Premises, and the Building 202 Premises, the "Enclosed Area"; and

(vi) The open areas shown in cross-hatching on the sketch attached hereto and made a part hereof marked as "Exhibit A-5," totaling Three and Nine-Tenths (3.90) acres, together with the buildings, structures, fixtures, improvements and other property, if any, of the Port Authority located or to be located or constructed therein or thereon, and buildings, structures, fixtures,

improvements and other property of the Port Authority being hereinafter collectively called "the Open Area", which, when taken together with the Enclosed Area, shall hereinafter be collectively called the "Premises."

(vii) The parties agree that the Premises constitute non-residential property.

(b) Nothing contained in this Agreement shall grant to the Lessee any rights whatsoever in the air space above the roof of any building or buildings or portion of any building or buildings, if any are included in the Premises (except to the extent required in either case for the performance of any of the obligations of the Lessee hereunder), or more than twenty (20) feet above the present ground level of any open area included in the Premises.

Section 2. Term; Lease Commencement Dates

(a) The term of the letting under this Agreement for the Building 173 Annex Premises, the Building 201 Premises, and the Building 202 Premises (the "Building 173/201/202 Premises") shall commence at 12:01 o'clock A.M. on November 1, 2009 (the "Building 173/201/202 Lease Commencement Date") and shall expire if not sooner terminated, at 11:59 o'clock P.M. on October 31, 2019 (the "Building 173/201/202 Premises Term").

(b) The term of the letting under this Agreement for the Building 194 Premises and the Building 199 Premises (when taken together, the "Building 194/199 Premises") shall commence at 12:01 o'clock A.M. on November 1, 2009 (the "Building 194/199 Lease Commencement Date") and shall expire, if not sooner terminated, at 11:59 o'clock P.M. on October 31, 2012 (the "Building 194/199 Premises Term").

(c) The term of the letting under this Agreement for the Open Area shall commence at 12:01 o'clock A.M. on November 1, 2009 (the "Open Area Lease Commencement Date") and shall expire if not sooner terminated at 11:59 o'clock P.M. of October 31, 2019 (the "Open Area Term").

(d) The Building 173/201/202 Premises Term, plus the Building 194/199 Premises Term, and the Open Area Term shall collectively be referred to herein as the "Term".

(e) The Building 173/201/202 Lease Commencement Date, the Building 194/199 Lease Commencement Date and the Open Area

Commencement Date shall be referred to herein as the "Lease Commencement Date."

Section 3. Enclosed Area Basic Rental

(a) The Lessee shall pay a basic rental to the Port Authority at the annual rate of Three Million Two Hundred Thirty Nine Thousand Five Hundred Ninety Two and 64/100 Dollars (\$3,239,592.64) for the Enclosed Area, payable in advance in equal monthly installments of Two Hundred Sixty Nine Thousand and Nine Hundred Sixty Six and 05/100 Dollars (\$269,966.05) commencing on November 1, 2009 (the "Enclosed Area Rental Commencement Date") and on the first day of each calendar month thereafter during the Term (the "Enclosed Area Basic Rental"). The Enclosed Area Basic Rental set forth in this Section shall be adjusted during the Term under this Agreement in accordance with the provisions of subparagraph (b) of Section 4 hereof. Upon the expiration of the Building 194/199 Premises Term, the Enclosed Area Basic Rental shall be readjusted accordingly to reflect that basic rental is no longer being paid by Lessee for the Building 194/199 Premises.

Section 4. Enclosed Area Basic Rental Escalation

(a) *Definitions.* As used in this Section:

(i) "Adjustment Period" shall mean, as the context requires, the calendar month constituting the Base Period and the same calendar month in each calendar year thereafter during the Term.

(ii) "Anniversary Date" shall mean, as the context requires, November 1, 2014 (the "First Anniversary Date") and each anniversary of such date occurring during the Term.

(iii) "Annual Index Increase" shall mean the percentage of increase in the Index on each Anniversary Date, equal to: (x) with respect to the First Anniversary Date, a fraction of which the numerator shall be the Index for the Adjustment Period immediately preceding such Anniversary Date less the Index for the Base Period, and the denominator shall be the Index for the Base Period, and (y) with respect to each Anniversary Date thereafter, a fraction of which the numerator shall be the Index for the Adjustment Period immediately preceding such Anniversary Date less the Index for the next preceding Adjustment Period, and the denominator shall be the Index for such next preceding Adjustment Period. For example,

(c) The Lessee acknowledges the Lessee's assurance of faithful performance of these provisions is a special inducement for the Port Authority to enter into this Agreement. Noncompliance on the part of the Lessee with the provisions contained in this Section shall be and be deemed an Event of Default under Section 24 of this Agreement, and the Port Authority shall have the right to terminate this Agreement and the letting hereunder pursuant to the provisions of said Section 24 hereof.

(d) The foregoing right of termination shall be in addition to all other rights of termination the Port Authority has under this Agreement and the failure of the Port Authority to exercise its right of termination under this Section at any time in which it may have such right shall not affect, waive or limit its right to exercise said right of termination at any subsequent time.

(e) The phrase "direct or indirect beneficial ownership" shall include without limiting the generality thereof the direct or indirect power through contract, arrangement, understanding, relationship or otherwise to dispose of or to direct the disposal of, or to vote or to direct the voting of, any voting security of an entity.

(f) The term "Security" shall include any stock, any limited liability company interest, any bond which carries voting rights, or rights or options to subscribe to, purchase, convert or transfer into or otherwise acquire equity securities, or any other obligation of an entity the holder of which has any voting rights including but not limited to the right to vote for the election of members of the board of directors or board of managers of said entity and shall include any security convertible into a voting security and any right, option or warrant to purchase a voting security.

(g) The Lessee shall promptly advise the Port Authority of any change in the representations made in this Section 40.

Section 41. Additional Termination Rights/Recapture Rights

(a) In addition to all other rights under this Agreement, as to the Building 173 Annex Premises, the Building 201 Premises, the Building 202 Premises, and the Open Area, both the Port Authority and the Lessee shall have the right to terminate the letting under the Agreement, without cause, effective at any time from and after October 31, 2015, on one (1) year's prior written notice to the other party. Termination under the

provisions of this Section shall have the same effect as if the effective date of termination stated in the notice were the date of expiration of the Term.

(b) In addition to all other rights under this Agreement, as to only the Building 194 Premises, both the Port Authority and the Lessee shall have the right to terminate the letting under the Agreement, without cause, at any time, on sixty (60) days' prior written notice to the other party. Termination under the provisions of this Section shall have the same effect as if the effective date of termination stated in the notice were the date of expiration of the Term.

(c) In addition to all other rights under this Agreement, as to only the Building 199 Premises, both the Port Authority and the Lessee shall have the right to terminate the letting under the Agreement, without cause, at any time, on one (1) year's prior written notice to the other party. Termination under the provisions of this Section shall have the same effect as if the effective date of termination stated in the notice were the date of expiration of the Term.

Section 42. Security

The Lessee and the Port Authority hereby agree that all sums deposited by the Lessee as security under this Lease LPN-297 shall be held and used by the Port Authority as security for the full, faithful and prompt performance of and compliance with, on the part of the Lessee, all of the terms, provisions, covenants and conditions of this Agreement, Lease LPN-297. Upon the execution of this Agreement by the Lessee and delivery thereof to the Port Authority, the Lessee shall deliver to the Port Authority, as security for the Lessee's full, faithful and prompt performance of and compliance with all of its obligations under this Agreement, a clean irrevocable letter of credit issued by a banking institution reasonably satisfactory to the Port Authority and having its main office within the Port of New York District, in favor of the Port Authority in the amount of \$610,000.00, allowing for partial and complete draws upon presentation of a site draft (the Port Authority hereby acknowledges receipt of the foregoing letter of credit). The form and terms of such letter of credit, as well as the institution issuing it, shall be subject to the prior and continuing approval of the Port Authority. Such letter of credit shall provide that it shall continue throughout the Term and for a period of not less than six (6) months thereafter; such continuance may be by provision for automatic renewal or by substitution of a subsequent satisfactory letter of credit.

EXHIBIT B

THE PORT AUTHORITY OF NY & NJ

April 19, 2016

Mr. Patrick Wynne
President
Port Elizabeth Terminal & Warehouse Corp.
201A Export Street
Port Newark, New Jersey 07114

Re: Notice of Termination – Agreement of Lease between the Port Authority of New York and New Jersey (Port Authority) and Port Elizabeth Terminal & Warehouse Corp. (Lessee), dated as of November 1, 2009, with Port Authority Lease No. LPN-297 (Lease)

Dear Mr. Wynne:

As per the terms of Section 41(a) of the Lease, Lessee is notified that as of May 1, 2016, the Port Authority is exercising its rights to terminate, without cause, upon one (1) year prior written notice, the letting for (x) the Building 201 Premises as defined in subparagraph (a)(i) of Section 1 of the Lease and described on "Exhibit A" to the Lease and (y) the Building 202 Premises as defined in subparagraph (a)(ii) of Section 1 of the Lease and described on "Exhibit A-1" to the Lease. The effective date of this termination will be May 1, 2017, with the last day of beneficial occupancy being April 30, 2017.

I can be reached at 212.435.4244 if you have any questions or need additional information.

Thank you for your cooperation in this matter.

Sincerely,



Michael P. Bozza
Manager
Port Leasing and Property Development

150 Greenwich Street
4 World Trade Center – 17th Floor
New York, NY 10007
T: 212 435 7000

PA003076

EXHIBIT C

Barragan, Juan

Subject: LPN-297 PETW litigation vs negotiation
Location: Rm 25-02

Start: Fri 3/31/2017 9:00 AM
End: Fri 3/31/2017 9:30 AM

Recurrence: (none)

Meeting Status: Accepted

Organizer: Abrams, Sima
Required Attendees: Barragan, Juan; Bozza, Michael; Kromm, David
Optional Attendees: Ruda, Sam; Cinquemani, Raina; Huang, Charles

EXHIBIT D

TENANCY SUMMONS AND RETURN OF SERVICE (R. 6:2-1)

NOTICE: This is a public document, which means the document as submitted will be available to the public upon request. Therefore, do not enter personal identifiers on it, such as Social Security number, driver's license number, vehicle plate number, insurance policy number, active financial account number, or active credit card number.

Plaintiff or Filing Attorney Information:

Name David Kromm
NJ Attorney ID Number 001382011
Address 2 Montgomery Street, 3rd Floor
Jersey City, NJ 07302
Telephone Number (212) 435-3483

Superior Court of New Jersey
Law Division, Special Civil Part

Essex County

Central Processing Unit, Room 131
50 West Market Street
Newark, NJ 07102
(973) 776-9300 ext 56893

THE PORT AUTHORITY OF NEW

YORK AND NEW JERSEY

Plaintiff(s)

versus

PORT ELIZABETH TERMINAL

& WAREHOUSE CORP

Defendant (s)

Docket Number: LT - 14999-17
(to be provided by the court)

Civil Action
SUMMONS
LANDLORD/TENANT

Defendant Information:

Name: Port Elizabeth Terminal & Warehouse Corp
Address: 201A Export Street
Port Newark, NJ 07114
Phone: (973) 491-0600

Nonpayment
☒ Other

NOTICE TO TENANT: The purpose of the attached complaint is to permanently remove you and your belongings from the premises. If you want the court to hear your side of the case you must appear in court on this date and time: 6/8/10 at 8:30 ☒ a.m. ☐ p.m., or the court may rule against you.

REPORT TO: COURTROOM 155

If you cannot afford to pay for a lawyer, free legal advice may be available by contacting Legal Services at (973) 624-4500. If you can afford to pay a lawyer but do not know one, you may call the Lawyer Referral Services of your local county Bar Association at (973) 622-6204.

You may be eligible for housing assistance. To determine your eligibility, you must immediately contact the welfare agency in your county at Dept Citizen Services, telephone number (973) 733-3000.

If you need an interpreter or an accommodation for a disability, you must notify the court immediately.

Si ud. no tiene dinero para pagar a un abogado, es posible que pueda recibir consejos legales gratuitos si se comunica con Servicios Legales (Legal Services) al (973) 624-4500. Si tiene dinero para pagar a un abogado pero no conoce ninguno puede llamar a Servicios de Recomendación de Abogados (Lawyer Referral Services) del Colegio de Abogados (Bar Association) de su condado local al (973) 622-6204.

Es posible que pueda recibir asistencia con la vivienda si se comunica con la agencia de asistencia publica (welfare agency) de su condado al Dept Citizen Services, telefono (973) 733-3000.

Si necesita un interprete o alguna acomodación para un impedimento fisico, tiene que notificárselo inmediatamente al tribunal.

Date: _____

Clerk of the Special Civil Part

TENANCY SUMMONS AND RETURN OF SERVICE (R. 6:2-1)

NOTICE: This is a public document, which means the document as submitted will be available to the public upon request. Therefore, do not enter personal identifiers on it, such as Social Security number, driver's license number, vehicle plate number, insurance policy number, active financial account number, or active credit card number

Plaintiff or Filing Attorney Information:

Name David Kromm
NJ Attorney ID Number 001382011
Address 2 Montgomery Street, 3rd Floor
Jersey City, NJ 07302
Telephone Number (212) 435-3483

Superior Court of New Jersey
Law Division, Special Civil Part

Essex County

Central Processing Unit, Room 131
50 West Market Street
Newark, NJ 07102
(973) 776-9300 ext. 56893

THE PORT AUTHORITY OF NEW

YORK AND NEW JERSEY

Plaintiff(s)

versus

PORT ELIZABETH TERMINAL

& WAREHOUSE CORP.

Defendant (s)

Docket Number: LT - 14999-17
(to be provided by the court)

Civil Action
SUMMONS
LANDLORD/TENANT

Defendant Information:

Name: Port Elizabeth Terminal & Warehouse Corp.
Address: 201A Export Street
Port Newark, NJ 07114
Phone: (973) 491-0600

Nonpayment
☒ Other

NOTICE TO TENANT: The purpose of the attached complaint is to permanently remove you and your belongings from the premises. If you want the court to hear your side of the case you must appear in court on this date and time: 6/8/12 at 8:30 ☒ a.m. ☐ p.m., or the court may rule against you.
REPORT TO: COURTROOM 155

If you cannot afford to pay for a lawyer, free legal advice may be available by contacting Legal Services at (973) 624-4500. If you can afford to pay a lawyer but do not know one, you may call the Lawyer Referral Services of your local county Bar Association at (973) 622-6204.

You may be eligible for housing assistance. To determine your eligibility, you must immediately contact the welfare agency in your county at Dept Citizen Services, telephone number (973) 733-3000.

If you need an interpreter or an accommodation for a disability, you must notify the court immediately.

Si ud. no tiene dinero para pagar a un abogado, es posible que pueda recibir consejos legales gratuitos si se comunica con Servicios Legales (Legal Services) al (973) 624-4500. Si tiene dinero para pagar a un abogado pero no conoce ninguno puede llamar a Servicios de Recomendación de Abogados (Lawyer Referral Services) del Colegio de Abogados (Bar Association) de su condado local al (973) 622-6204.

Es posible que pueda recibir asistencia con la vivienda si se comunica con la agencia de asistencia publica (welfare agency) de su condado al Dept. Citizen Services, telefono (973) 733-3000.

Si necesita un interprete o alguna acomodación para un impedimento fisico, tiene que notificárselo inmediatamente al tribunal.

Date: _____

Clerk of the Special Civil Part

COURT OFFICER'S RETURN OF SERVICE (FOR COURT USE ONLY)

Docket Number _____ Date: _____ Time _____
WM _____ WF _____ BM _____ BF _____ OTHER _____ HT _____ WT _____ AGE _____ MUSTACHE _____ BEARD _____ GLASSES _____
NAME: _____ RELATIONSHIP _____

Efforts Made to Personally Serve _____

Description of Premises if Posted _____

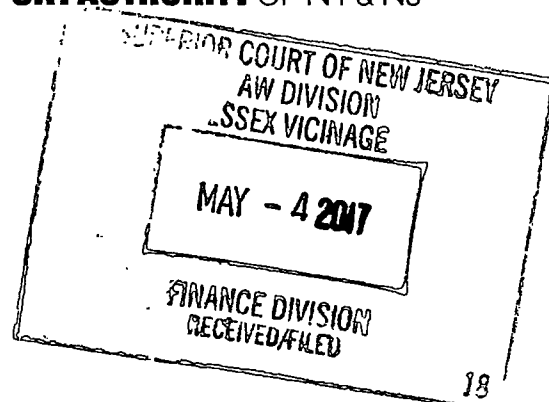
I hereby certify the above to be true and accurate _____
Special Civil Part Officer

THE PORT AUTHORITY OF NY & NJ

May 2, 2017

Via FedEx Express

Essex County Civil/Special Civil Part
Finance Div., Central Processing Unit
Veterans Courthouse, Room 131
50 West Market Street
Newark, NJ 07102



Re: The Port Authority v. Port Elizabeth Warehouse & Terminal Corp.
Docket No.: Pending
Our Matter No.: 201710575

Dear Madam/Sir,

I represent Plaintiff, The Port Authority of New York and New Jersey. Enclosed for filing please find an original and three copies of the following:

1. Verified Complaint with Exhibits
2. Tenancy Summons & Return of Service

Please file the original and return one of the copies marked "filed" to my attention in the self-addressed, stamped envelope provided. You may charge any filing fees to the account of The Port Authority of New York and New Jersey standing in the name of **The Port Authority of New York and New Jersey Law Department, Account No.: 081350.**

Very truly yours,

A handwritten signature in black ink, appearing to read "David Kromm".

David Kromm
Attorney
Law Department
Tel. No.: (212) 435-3483

Enclosures

4 World Trade Center
150 Greenwich Street
New York, NY 10007

THE PORT AUTHORITY OF NEW YORK
AND NEW JERSEY LAW DEPARTMENT
By: David Kromm - 001382011
2 Montgomery Street, 3rd Floor
Jersey City, New Jersey 07302
Tel. No.: (212) 435-3483
Attorney for The Port Authority of New York
and New Jersey

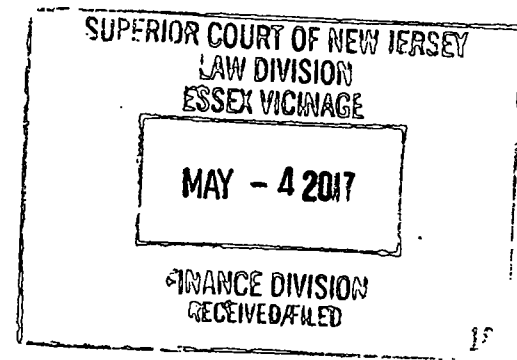
THE PORT AUTHORITY OF NEW YORK
AND NEW JERSEY

Plaintiff/Landlord,

vs.

PORT ELIZABETH TERMINAL &
WAREHOUSE CORP.,

Defendant/Tenant.



SUPERIOR COURT OF NEW JERSEY

LAW DIVISION, SPECIAL CIVIL PART
ESSEX COUNTY

DOCKET NO.: LT-

Civil Action

VERIFIED COMPLAINT

Plaintiff/Landlord, The Port Authority of New York and New Jersey ("Plaintiff" or the "Port Authority"), through its attorney, The Port Authority of New York and New Jersey Law Department, complaining of the Defendant/Tenant, Port Elizabeth Terminal & Warehouse Corp. ("Defendant" or "Lessee"), says:

The Parties

1. The Port Authority is a body of corporate and politic created by Compact between the States of New York and New Jersey with the consent of the Congress of the United States, existing under the laws of the States of New Jersey and New York with its principal place of business at 4 World Trade Center, 150 Greenwich Street, New York, New York.

2. Defendant is a corporation organized under the laws of the State of New Jersey with an office and principal place of business at 201A Export Street, Port Newark, New Jersey.

3. Upon information and belief, Defendant also does business under the name P. Judge and/or the Judge Organization.

Factual Background Relevant to all Causes of Action

4. The Port Authority is the landlord of the buildings, structures, fixtures, improvements, and other property in Port Newark that are depicted in the enclosed spaces shown in cross-hatching and the associated open areas shown in stipple on the sketches is made part hereto and attached as Exhibits 1, 2, 3, 4, 5 and 6 (collectively referred to as the “Premises”).

5. The Port Authority is the landlord of the buildings, structures, fixtures, improvements, and other property in Port Newark that is depicted in the enclosed space shown in the cross-hatching and the associated open areas shown in stipple on the sketch attached hereto as Exhibit 1, which is called Building 201 of the Premises (“Building 201”).

6. The Port Authority is the landlord of the buildings, structures, fixtures, improvements, and other property in Port Newark that is depicted in the enclosed space shown in the cross-hatching and the associated open areas shown in stipple on the sketch attached hereto as Exhibit 2, which is called Building 202 of the Premises (“Building 202”).

7. On November 1, 2009, the Port Authority entered into an agreement, in writing, designated as Lease No.: LPN-297 (the Lease Agreement”), a copy of which is made part hereto and attached as Exhibit 7.

8. Pursuant to the Lease Agreement, the Port Authority, as lessor, let to Defendant, as lessee, the Premises, which included Building 201 and Building 202 of the Premises.

9. The Lease Agreement as to Building 201 and Building 202 of the Premises commenced on November 1, 2009 with a termination date of October 31, 2019, unless terminated sooner pursuant to the terms of the Lease Agreement.

10. Section 41 of the Lease Agreement titled, Additional Termination Rights/Recapture Rights, provides, in relevant part, that “[i]n addition to all other rights under this Agreement, as to the Building 173 Annex Premises, the Building 201 Premises, the Building 202 Premises, and the Open Area, both the Port Authority and the Lessee shall have the right to terminate the letting under the Agreement, without cause, effective at any time from and after October 31, 2015, on one (1) year's prior written notice to the other party.”

11. Section 41 of the Lease Agreement further provides that “[t]ermination under the provisions of this Section shall have the same effect as if the effective date of termination stated in the notice were the date of expiration of the Term.”

**First Cause of Action
(Repossession)**

12. The Port Authority repeats the allegations contained in paragraphs 1-11 of this Verified Complaint as though same were set forth herein fully at length.

13. On April 19, 2016, the Port Authority served a Notice of Termination upon Defendant pursuant to section 41(a) of the Lease Agreement (the “Notice of Termination”), whereby the Port Authority exercised its rights to terminate the letting of Building 201 and Building 202 of the Premises effective May 1, 2017, with the last day of beneficial occupancy being April 30, 2017. A copy of the Notice of Termination is made part hereto and attached as Exhibit 8.

14. By email dated April 20, 2016, Defendant acknowledged receipt of the Notice of Termination. A copy of the email acknowledging receipt of the Notice of Termination is made part hereto and attached as Exhibit 9.

15. Therefore, by reason of section 41(a) of the Lease Agreement and the Notice of Termination, the term of the Lease Agreement as to Building 201 and Building 202 of the Premises expired on May 1, 2017, with the last day of beneficial occupancy on April 30, 2017.

16. Defendant remains in occupation, possession and control of the Port Authority's property notwithstanding the termination of the letting as to Building 201 and Building 202 of the Premises and without consent of the Port Authority.

WHEREFORE The Port Authority demands judgment for possession of Building 201 and Building 202 of the Premises together with court costs, attorney's fees and any other relief the Court deems equitable and just.

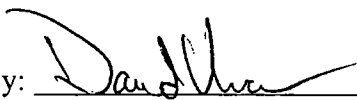
Certification Pursuant to R. 4:5-1

Pursuant to the provisions of R. 4:5-1, I certify that this matter is not the subject of any other action pending in any court or arbitration proceeding. An action against Defendant to recover the amounts due, unpaid and owing in basic rent and additional rent and charges is contemplated; all known necessary parties have been joined in this action.

R. 1:38-7(b) Certification

I certify that confidential personal identifiers have been redacted from documents now submitted to the court, and will be redacted from all documents submitted in the future in accordance with R. 1:38-7(b).

THE PORT AUTHORITY OF NEW YORK
AND NEW JERSEY LAW DEPARTMENT
Attorneys for The Port Authority of New
York and New Jersey

By: 
David Kromm

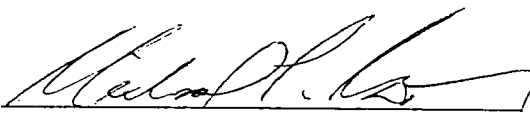
Dated: May 2, 2017

Landlord Verification

1. I, Michael Bozza, certify that I am the Manager of Port Leasing and Property Development of the Port Department of the Port Authority.
2. The City of Newark is the owner of the Premises and said Premises is operated by the Port Authority pursuant to a long term written agreement of Lease dated October 22, 1947, entered into by the City of Newark and the Port Authority.
3. Said lease let to the Port Authority the property known as Port Newark in the City of Newark, New Jersey.
4. The Port Authority is the landlord of the Premises which are currently occupied by Defendant.
5. On April 19, 2016, the Port Authority served a written Notice of Termination upon Defendant, a copy of which is attached hereto as Exhibit 8.
6. In the written Notice of Termination, the Port Authority advised Defendant that the Port Authority was exercising its rights to terminate the letting of Building 201 and Building 202 of the Premises effective May 1, 2017.
7. On April 20, 2016, Defendant acknowledged receipt of the written Notice of Termination. A copy of the email acknowledging receipt is attached hereto as Exhibit 9.
8. Defendant remains in occupation, possession and control of Building 201 and Building 202 of the Premises.
9. I have read the Verified Complaint and the information contained therein is true based upon my personal knowledge.

10. I certify that the foregoing statements made by me are true and I am aware that if any of the foregoing statements made by me are willfully false, I am subject to punishment.

THE PORT AUTHORITY OF NEW YORK
AND NEW JERSEY

By: 

Michael Bozza
Manager of Port Leasing and Property
Development, Port Department

Dated: May 2, 2017

EXHIBIT E

BEFORE THE
FEDERAL MARITIME COMMISSION

Docket No. 17-07

PORT ELIZABETH TERMINAL & WAREHOUSE CORP.
COMPLAINANT

v.

THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY
RESPONDENT

AFFIDAVIT OF SERVICE

Tyler L. Hinton, being duly sworn, deposes and says:

That I am a Law Intern in The Port Authority of New York and New Jersey Law Department, am over the age of eighteen (18) years, am not a party to this action and have an office address at 4 World Trade Center, 150 Greenwich Street, New York, New York.

That on the 13th day of November 2017, I served the annexed **THE PORT AUTHORITY'S RESPONSES TO THE DEFICIENCIES PETW INDICATES ARE PRESENT IN THE PORT AUTHORITY'S RESPONSES TO PETW'S FIRST REQUEST FOR PRODUCTION OF DOCUMENTS WITH ENCLOSURES, THE PORT AUTHORITY'S RESPONSES TO THE DEFICIENCIES PETW INDICATES ARE PRESENT IN THE PORT AUTHORITY'S ANSWERS TO PETW'S FIRST SET OF INTERROGATORIES and THE PRIVILEGE LOG** upon:

Law Offices of Donald F. Burke
45 Gale Road
Brick, New Jersey 08723
Attn: Donald F. Burke, Esq.

LaRoe, Winn, Moerman & Donovan
1250 Connecticut Avenue North West, Suite 200
Washington, DC 20036
Attn: Paul M. Donovan, Esq.

by depositing a true copy thereof in a sealed wrapper, in a depository maintained by FedEx to be shipped via FedEx Overnight Service at 4 World Trade Center, 150 Greenwich Street, 24th Floor, New York, New York 10007.

Sworn to before me this
13th day of November 2017.



Notary Public

Natalie D. Russell
NOTARY PUBLIC, State of New York
No. 01RU6358214
Qualified in New York County
Commission Expires May 8, 2021

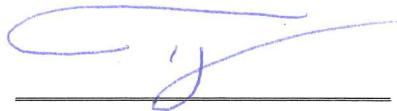


EXHIBIT F



November 14, 2017

Dear Customer:

Proof-of-delivery letters are being provided for the following shipments:

770738669751

BRICK,NJ

770738691683

WASHINGTON,DC

You may save or print this Batch Signature Proof of Delivery file for your records.

Thank you for choosing FedEx.

FedEx

1.800.GoFedEx 1.800.463.3339



November 14, 2017

Dear Customer:

The following is the proof-of-delivery for tracking number **770738669751**.

Delivery Information:

Status:	Delivered	Delivered to:	Residence
Signed for by:	Signature not required	Delivery location:	45 GALE RD BRICK, NJ 08723
Service type:	FedEx Standard Overnight	Delivery date:	Nov 14, 2017 12:37
Special Handling:	Deliver Weekday Residential Delivery		

NO SIGNATURE REQUIRED

Proof-of-delivery details appear below; however, no signature is available for this FedEx Express shipment because a signature was not required.

Shipping Information:

Tracking number:	770738669751	Ship date:	Nov 13, 2017
		Weight:	0.5 lbs/0.2 kg

Recipient:

DONALD F. BURKE, ESQ.
Attorney at Law
45 GALE ROAD
BRICK, NJ 08723 US

Reference**Shipper:**

Juan Barragan
The Port Authority of NY & NJ
4 WORLD TRADE CTR
FL 24
NEW YORK, NY 10007 US
CN: BRIAN SULLIVAN V. PA

Thank you for choosing FedEx.



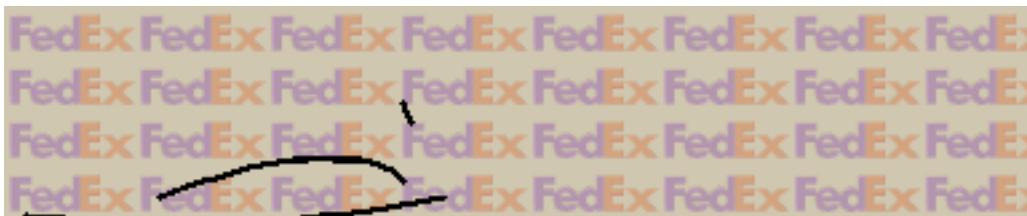
November 14, 2017

Dear Customer:

The following is the proof-of-delivery for tracking number **770738691683**.

Delivery Information:

Status:	Delivered	Delivered to:	Receptionist/Front Desk
Signed for by:	A.COX	Delivery location:	1250 CONNECTICUT AVENUE NW WASHINGTON, DC 20036
Service type:	FedEx Standard Overnight	Delivery date:	Nov 14, 2017 09:57
Special Handling:	Deliver Weekday		



Shipping Information:

Tracking number:	770738691683	Ship date:	Nov 13, 2017
		Weight:	2.0 lbs/0.9 kg

Recipient:

Paul M. Donovan
LaRoe, Winn, Moerman & Donovan
1250 Connecticut Avenue North West
Suite 200
WASHINGTON, DC 20036 US

Shipper:

Juan Barragan
The Port Authority of NY & NJ
4 WORLD TRADE CTR
FL 24
NEW YORK, NY 10007 US

Thank you for choosing FedEx.

EXHIBIT G

THE PORT AUTHORITY OF NY & NJ

Law Department

*4 World Trade Center
150 Greenwich Street
New York, NY 10007*

November 14, 2017

Via FedEx Express

Donald F. Burke, Esq.
Law Office of Donald F. Burke
45 Gale Road
Brick, NJ 08723

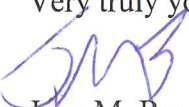
**Re: Port Elizabeth Terminal & Warehouse Corp. v. The Port Authority
Docket No.: 17-07
Our Matter No.: 201711889**

Dear Mr. Burke,

On November 14, 2017 at 3:05 pm, your office filed a motion to compel the Port Authority to provide more specific answers to interrogatories, produce documents and provide a privilege log. However, on November 13, 2017, the Port Authority supplemented its responses to the deficiencies you indicated were present in the Port Authority's answers to PETW's first set of interrogatories and PETW's first request for production of documents. Included with those responses were 2,527 pages of additional documents and a privilege log. According to FedEx's records, these documents were delivered to your office and Paul M. Donovan's office today at 12:37 pm and 9:57 am, respectively. Attached is a copy of the FedEx proof of delivery for your reference.

I am therefore requesting that you please withdraw your motion. Please advise me of your intentions regarding same by Thursday, November 16, 2017, at the latest.

Very truly yours,



Juan M. Barragan
Attorney
Law Department
Tel. No.: (212) 435-3529
Fax No.: (212) 435-3834

Enclosure

cc: Paul M. Donovan, Esq. (via FedEx Express w/ encl.)



November 14, 2017

Dear Customer:

Proof-of-delivery letters are being provided for the following shipments:

770738669751

BRICK,NJ

770738691683

WASHINGTON,DC

You may save or print this Batch Signature Proof of Delivery file for your records.

Thank you for choosing FedEx.

FedEx

1.800.GoFedEx 1.800.463.3339



November 14, 2017

Dear Customer:

The following is the proof-of-delivery for tracking number **770738669751**.

Delivery Information:

Status:	Delivered	Delivered to:	Residence
Signed for by:	Signature not required	Delivery location:	45 GALE RD BRICK, NJ 08723
Service type:	FedEx Standard Overnight	Delivery date:	Nov 14, 2017 12:37
Special Handling:	Deliver Weekday Residential Delivery		

NO SIGNATURE REQUIRED

Proof-of-delivery details appear below; however, no signature is available for this FedEx Express shipment because a signature was not required.

Shipping Information:

Tracking number:	770738669751	Ship date:	Nov 13, 2017
		Weight:	0.5 lbs/0.2 kg

Recipient:

DONALD F. BURKE, ESQ.
Attorney at Law
45 GALE ROAD
BRICK, NJ 08723 US

Reference**Shipper:**

Juan Barragan
The Port Authority of NY & NJ
4 WORLD TRADE CTR
FL 24
NEW YORK, NY 10007 US
CN: BRIAN SULLIVAN V. PA

Thank you for choosing FedEx.



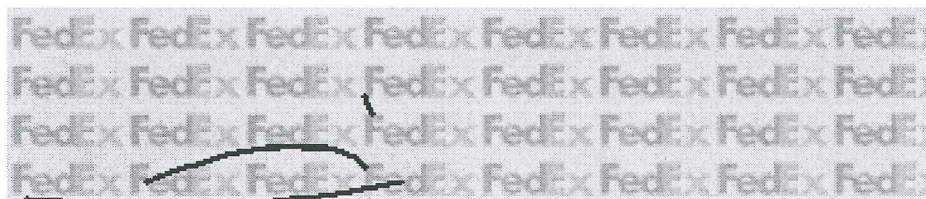
November 14, 2017

Dear Customer:

The following is the proof-of-delivery for tracking number **770738691683**.

Delivery Information:

Status:	Delivered	Delivered to:	Receptionist/Front Desk
Signed for by:	A.COX	Delivery location:	1250 CONNECTICUT AVENUE NW WASHINGTON, DC 20036
Service type:	FedEx Standard Overnight	Delivery date:	Nov 14, 2017 09:57
Special Handling:	Deliver Weekday		



Shipping Information:

Tracking number:	770738691683	Ship date:	Nov 13, 2017
		Weight:	2.0 lbs/0.9 kg

Recipient:

Paul M. Donovan
LaRoe, Winn, Moerman & Donovan
1250 Connecticut Avenue North West
Suite 200
WASHINGTON, DC 20036 US

Shipper:

Juan Barragan
The Port Authority of NY & NJ
4 WORLD TRADE CTR
FL 24
NEW YORK, NY 10007 US

Thank you for choosing FedEx.

ORIGIN ID: PCTA (212) 435-3529
 JUAN M. BARRAGAN
 PORT AUTHORITY OF NY & NJ
 4 WORLD TRADE CENTER, 24TH FLOOR
 150 GREENWICH STREET
 NEW YORK, NY 10007
 UNITED STATES US

SHIP DATE: 14NOV17
 ACTWGT: 1.00 LB
 CAD: 9080175/NET 3920
 BILL SENDER

TO **PAUL M. DONOVAN**

LAROE, WINN, MOERMAN & DONOVAN

1250 CONNECTICUT AVENUE NORTH WEST

SUITE 200

WASHINGTON DC 20036

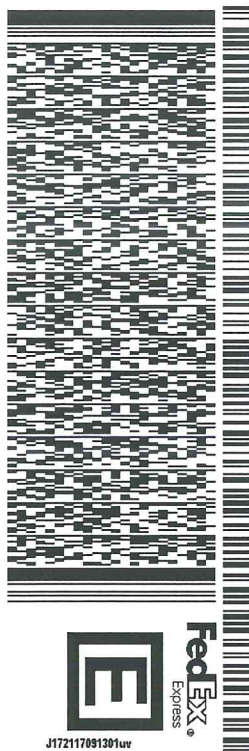
(000) 000-0000

REF: PETW

PO:

DEPT:

549J3/F877104C

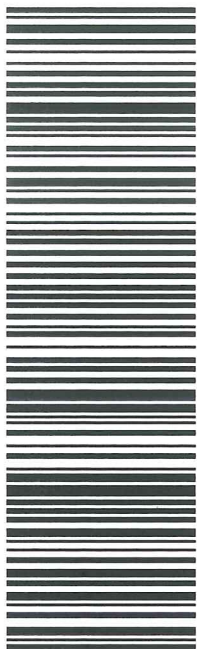


WED - 15 NOV 3:00P

STANDARD OVERNIGHT

TRK# 7707 5091 2214
 0201

EP BZSA
 DC-US IAD 20036



After printing this label:

1. Use the 'Print' button on this page to print your label to your laser or inkjet printer.
2. Fold the printed page along the horizontal line.
3. Place label in shipping pouch and affix it to your shipment so that the barcode portion of the label can be read and scanned.

Warning: Use only the printed original label for shipping. Using a photocopy of this label for shipping purposes is fraudulent and could result in additional billing charges, along with the cancellation of your FedEx account number.

Use of this system constitutes your agreement to the service conditions in the current FedEx Service Guide, available on fedex.com. FedEx will not be responsible for any claim in excess of \$100 per package, whether the result of loss, damage, delay, non-delivery, misdelivery, or misinformation, unless you declare a higher value, pay an additional charge, document your actual loss and file a timely claim. Limitations found in the current FedEx Service Guide apply. Your right to recover from FedEx for any loss, including intrinsic value of the package, loss of sales, income interest, profit, attorney's fees, costs, and other forms of damage whether direct, incidental, consequential, or special is limited to the greater of \$100 or the authorized declared value. Recovery cannot exceed actual documented loss. Maximum for items of extraordinary value is \$1,000, e.g. jewelry, precious metals, negotiable instruments and other items listed in our Service Guide. Written claims must be filed within strict time limits, see current FedEx Service Guide.

ORIGIN ID: PCTA (212) 435-3529
 JUAN M. BARRAGAN
 PORT AUTHORITY OF NY & NJ
 4 WORLD TRADE CENTER, 24TH FLOOR
 150 GREENWICH STREET
 NEW YORK, NY 10007
 UNITED STATES US

SHIP DATE: 14NOV17
 ACTWGT: 1.00 LB
 CAD: 9080175/NET3920
 BILL SENDER

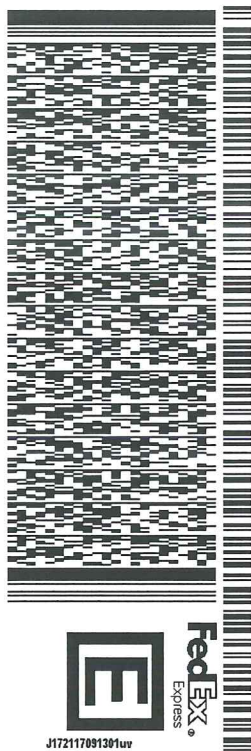
TO **PAUL M. DONOVAN**

LAROE, WINN, MOERMAN & DONOVAN
1250 CONNECTICUT AVENUE NORTH WEST
SUITE 200

WASHINGTON DC 20036

(000) 000-0000 REF: PETW
 INV: DEPT: PO:

549J3F8771104C



TRK# 7707 5091 2214
 0201

WED - 15 NOV 3:00P
 STANDARD OVERNIGHT

EP BZSA
 DC-US IAD 20036



After printing this label:

1. Use the 'Print' button on this page to print your label to your laser or inkjet printer.
2. Fold the printed page along the horizontal line.
3. Place label in shipping pouch and affix it to your shipment so that the barcode portion of the label can be read and scanned.

Warning: Use only the printed original label for shipping. Using a photocopy of this label for shipping purposes is fraudulent and could result in additional billing charges, along with the cancellation of your FedEx account number.

Use of this system constitutes your agreement to the service conditions in the current FedEx Service Guide, available on fedex.com. FedEx will not be responsible for any claim in excess of \$100 per package, whether the result of loss, damage, delay, non-delivery, misdelivery, or misinformation, unless you declare a higher value, pay an additional charge, document your actual loss and file a timely claim. Limitations found in the current FedEx Service Guide apply. Your right to recover from FedEx for any loss, including intrinsic value of the package, loss of sales, income interest, profit, attorney's fees, costs, and other forms of damage whether direct, incidental, consequential, or special is limited to the greater of \$100 or the authorized declared value. Recovery cannot exceed actual documented loss. Maximum for items of extraordinary value is \$1,000, e.g. jewelry, precious metals, negotiable instruments and other items listed in our Service Guide. Written claims must be filed within strict time limits, see current FedEx Service Guide.